

OFFICE OF THE SECRETARY

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March 17, 2021

The Honorable Richard M. Curtis
Judge of the Superior Court
County of Monterey
240 Church Street
Salinas, CA 93901

Re: Rodrick Johnson
CDCR No: C39197
Case No: SS052400A
Date of Sentence: June 28, 2007

Dear Honorable Richard M. Curtis:

The purpose of this letter is to provide the court with the authority to resentence inmate Rodrick B. Johnson, pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1), based upon his exceptional conduct while incarcerated. PC Section 1170, subdivision (d)(1) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

As the Secretary of CDCR, I take my obligation to public safety very seriously and choose only to make exceptional conduct referrals when an inmate's behavior, while incarcerated, demonstrates a sustained compliance with departmental rules, regulations and requirements as well as prolonged participation in rehabilitative programming. These inmates have not only exhibited exceptional conduct through their ability to obey rules and regulations, but have also demonstrated a commitment to their rehabilitation through voluntary participation in self-help programs.

Inmate Johnson has received five Rules Violation Reports since being CDCR on July 9, 2007, but has remained disciplinary free since December of 2012. Inmate Johnson is currently assigned as a California Prison Industry Authority Facilities (CALPIA) Maintenance Custodian and his supervisor notes that he continues to work well with other inmates, co-workers and supervisors. Johnson also helps with the training of new inmates. Inmate Johnson's supervisor also stated that he is always respectful and helpful, and continues to show outstanding dedication to his job duties. Inmate Johnson has previously participated in PACE Life Skills, Truth Project, Motivational Programming, Voluntary Adult Basic Education,

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and Gavel Club. Inmate Johnson has received numerous certificates and two laudatory chronos from these group sponsors acknowledging his commitment and dedication to these self-awareness and improvement groups. Inmate Johnson also received six laudatory chronos from correctional staff and CALPIA supervisors commending him on his work performance.

Having reviewed the enclosed documentation it appears that inmate Johnson's sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d)(1), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,

A handwritten signature in cursive script, appearing to read "K. Allison".

KATHLEEN ALLISON
Secretary

Enclosures:

Abstract of Judgment

Minute Order

Court Information-Charging Documents

Cumulative Case Summary

cc: Honorable Julie R. Culver, Presiding Judge
Monterey County District Attorney's Office
Monterey County Public Defender's Office